

10.03.2022

Fine for Violation of GDPR

The National Supervisory Authority completed on February 24, 2022, an investigation into the operator Briza Land S.R.L. and found a violation of the provisions of Article 15 of the General Data Protection Regulation (GDPR). The operator Briza Land S.R.L. was fined an amount of 9892.6 lei, equivalent to 2000 EURO.

The investigation was initiated following a complaint in which the petitioner claimed that they were dissatisfied with the response received from the operator to their request to exercise the right of access provided by Article 15 of the General Data Protection Regulation. During the investigation, it was found that the operator did not communicate to the petitioner all the information regarding the processing of their personal data (such as the personal data processed, the source of the data, the recipients of the data), thus violating the provisions of Article 15 of the GDPR.

In this context, we reiterate that Article 15 of the GDPR provides that "the data subject has the right to obtain from the operator confirmation as to whether or not personal data concerning them is being processed and, if so, access to the said data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where applicable, the period for which the personal data will be stored or, if that is not possible, the criteria used to determine that period;
- e) the existence of the right to request the operator to rectify or erase personal data or to restrict the processing of personal data concerning the data subject or the right to object to the processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) where the personal data are not collected from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22 paragraphs (1) and (4), as well as, at least in those cases, relevant information regarding the logic involved and the significance and the envisaged consequences of such processing for the data subject."

Additionally, the operator was also subjected to the corrective measure of communicating to the petitioner all the information regarding the processing of their personal data, including the personal data processed, the source of the data, the recipients of the data, following their request to exercise the right of access to data, in accordance with Article 15 of the GDPR,

within 5 working days from the communication of the minutes.

A.N.S.P.D.C.P.